

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 2981

By: Banning

AS INTRODUCED

An Act relating to open meetings; amending 70 O.S. 2021, Section 5-118, as amended by Section 1, Chapter 4, O.S.L. 2025 (70 O.S. Supp. 2025, Section 5-118), which relates to regular meetings of school district boards of education; requiring all school district boards of education to post meeting minutes on the their website; establishing time limit for compliance; determining accessibility requirements; establishing results for noncompliance; clarifying applicability; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-118, as amended by Section 1, Chapter 4, O.S.L. 2025 (70 O.S. Supp. 2025, Section 5-118), is amended to read as follows:

Section 5-118. A. Regular meetings of the board of education of each school district shall be held upon the first Monday of each month, or upon such day as may be fixed by the board. Special meetings may be held from time to time as circumstances may demand.

B. All meetings of the boards of education shall be public meetings, and in all such meetings the vote of each member must be publicly cast and recorded. Executive sessions will be permitted

1 only for the purpose of discussing the employment, hiring,
2 appointment, promotion, demotion, disciplining, or resignations of
3 any or all of the employees or volunteers of the school district,
4 and for the purpose of discussing negotiations concerning employees
5 and representatives of employee groups, and for the purpose of
6 hearing evidence and discussing the expulsion or suspension of a
7 student or students only when requested by the student involved or
8 his or her parent, attorney, or legal guardian; provided, however,
9 that any vote or action thereon must be taken in a public meeting
10 with the vote of each member publicly cast and recorded. It is
11 required that the board of education shall provide notice to the
12 student, his or her parent, attorney or legal guardian that said
13 student is entitled to an executive session regarding the discussion
14 of expulsion or suspension of said student.

15 C. Any action taken in violation of the provisions of this act
16 shall be invalid.

17 D. Each member of the board of education of a school district
18 with an average daily attendance exceeding fifteen thousand (15,000)
19 or a school district where boundaries encompass a total population
20 exceeding one hundred thousand (100,000) persons according to the
21 last preceding Federal Decennial Census may be paid from the
22 district's general fund a stipend of Twenty-five Dollars (\$25.00)
23 for each regular, special or adjourned meeting of the board of
24

1 education that he or she attends, but not for more than four
2 meetings in any calendar month.

3 E. 1. Each school district board of education shall post their
4 regular and special meeting minutes to the school district's website
5 within two (2) weeks of the board's approval of the minutes. Such
6 minutes shall be accessible within two clicks of the main page of
7 the school district's website.

8 2. Failure to comply with the requirements in paragraph 1 of
9 this subsection shall result in an administration and organization
10 deficiency during the district's accreditation review.

11 F. 1. Unless otherwise provided by law, a board of education
12 may submit an Affidavit of Board Action to the State Department of
13 Education in lieu of approved board minutes to provide proof of an
14 action approved or taken at a board meeting. Such affidavit shall
15 be signed and sworn by the applicable personnel as provided in
16 paragraph 2 of this subsection. The State Department of Education
17 shall accept a signed Affidavit of Board Action as certification
18 that the district board has approved or taken a specific action at a
19 board meeting. Nothing in this subsection shall exempt a board of
20 education from keeping minutes of a meeting in accordance with
21 Section 312 of Title 25 of the Oklahoma Statutes or posting minutes
22 in accordance with subsection E of this section.

23 2. The Affidavit of Board Action described in paragraph 1 of
24 this subsection shall include:

- a. the county or district code,
- b. the name of the school district,
- c. the date of the board meeting,
- d. the agenda item number approved,
- e. a summary of the action approved,
- f. an affirming signature representing the district from
the district superintendent or the assistant
superintendent, and
- g. an affirming signature representing the district board
from the board president or chair, or from a board
officer.

SECTION 2. This act shall become effective November 1, 2026.

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